

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #02	CCRB Case #: 201607287	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/20/2016 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/20/2018	Precinct: 77		
Date/Time CV Reported Wed, 08/24/2016 3:59 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 08/24/2016 3:59 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 James Rivera	05027	925988	NARCBBN
2. SDS John Parente	02431	933145	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 James Ellerbe	02184	932600	NARCBBN
2. CPT Benjamin Lee	00000	932887	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 James Rivera	Abuse: Detective James Rivera entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 James Rivera	Discourtesy: Detective James Rivera spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . SDS John Parente	Abuse: Sergeant John Parente supervised the strip search of § 87(2)(b)	C . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On August 24, 2016, § 87(2)(b) filed this complaint in-person at the CCRB.

On July 20, 2016, at approximately 6:00 a.m., § 87(2)(b) was lying on his bed at § 87(2)(b) in Brooklyn when Detective James Rivera and other officers of Narcotics Borough Brooklyn North executed a search warrant at that location (**Allegation A**). Detective Rivera entered the bedroom and allegedly told § 87(2)(b) to "get the fuck up," (**Allegation B**). § 87(2)(b) was taken to the living room where he was strip-searched under the supervision of Sergeant John Parente of Narcotics Borough Brooklyn North (**Allegation C**). Sergeant Parente did not document this strip-search (**Allegation D**). § 87(2)(b) was placed under arrest for multiple narcotics-related charges.

No video exists for this incident. As per NYCHA CCTV, they do not maintain cameras at the incident location. § 87(2)(g)

Mediation, Civil and Criminal Histories

This case was not suitable for mediation due to § 87(2)(b) arrest. A Notice of Claim inquiry has been sent to the Comptroller's Office of the City of New York to determine whether § 87(2)(b) has filed a lawsuit in regards to this case. The result will be added to the case file upon receipt.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has two prior and one concurrent complaint with the CCRB (Board Review 03).
 - § 87(2)(b)
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- This is the first CCRB complaint involving § 87(2)(b) (Board Review 04).
- Sergeant Parente has been a member of the NYPD for 13 years and has ten prior CCRB allegations within five cases and one substantiated allegation. Sergeant Parente has one prior strip search allegation filed against him.
 - In CCRB case number 200801175, Sergeant Parente used excessive force and received Command Discipline B.

- Detective Rivera has been a member of the NYPD for 16 years and has eight prior allegations within six cases and no substantiated allegations. § 87(2)(g)

Potential Issues

§ 87(2)(b) identified his § 87(2)(b) stepson, § 87(2)(b) as being present in the apartment at the time of the search warrant execution. § 87(2)(b) confirmed that her grandson was present at the time and that he had been receiving letters from the CCRB seeking to obtain a statement from him. Multiple messages were left with § 87(2)(b) asking her to have her grandson call the undersigned. § 87(2)(b) did not get in touch with the undersigned and a statement was not obtained from him.

Findings and Recommendations

Allegation A – Abuse of Authority: Detective James Rivera entered and searched

§ 87(2)(b) in Brooklyn.

Allegation C – Abuse of Authority: Sergeant John Parente supervised the strip search of

§ 87(2)(b)

On August 23, 2016, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 10). On August 24, 2016, § 87(2)(b) and was interviewed at the CCRB. On November 18, 2016, § 87(2)(b) provided a follow-up telephone statement to the CCRB (Board Review 05). On October 11, 2016, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 06). On November 2, 2016, § 87(2)(b) was interviewed at the CCRB. On October 25, 2016, Detective James Ellerbee of Narcotics Borough Brooklyn North was interviewed at the CCRB. On November 2, 2016, Sergeant Parente was interviewed at the CCRB. On November 4, 2016, Detective Rivera was interviewed at the CCRB. On November 18, 2016, Captain Benjamin Lee of Narcotics Borough Brooklyn North was interviewed at the CCRB.

It is undisputed that officers of Narcotics Borough Brooklyn North entered and searched § 87(2)(b) in Brooklyn and conducted a strip-search of § 87(2)(b) while on the premises.

§ 87(2)(b) alleged that multiple officers from Narcotics Borough Brooklyn North entered his home and placed him in handcuffs before proceeding to search his bedroom. § 87(2)(b) denied that the search located narcotics in his apartment or on his person. § 87(2)(b) stated that Detective Rivera escorted him into the living room where a masked officer lowered his pants and undergarments, exposing his genitals. This officer allegedly ordered § 87(2)(b) to squat and jump in the air approximately two to three times before repositioning his undergarments and pants around his waist. § 87(2)(b) did not see § 87(2)(b) or any other civilian in the room at this time but later learned that § 87(2)(b) had walked into the room while his genitals were exposed.

§ 87(2)(b) was placed in handcuffs by an unidentified officer but the handcuffs were removed from her person shortly after. § 87(2)(b) walked around the apartment as officers conducted their search and looked into the living room where § 87(2)(b) was being detained. § 87(2)(b) stated that she “peaked” around a corner and that officers were seemingly unaware of her

presence. § 87(2)(b) observed § 87(2)(b) jumping up and down multiple times with his pants and undergarments around his ankles and his genitals exposed. § 87(2)(b) returned to her bedroom at this time.

Captain Lee confirmed that he was present to supervise the entry of the apartment for which a search warrant had been obtained by Detective Rivera. Captain Lee denied being present when § 87(2)(b) was removed from his bedroom and stated that he did not order a strip search of § 87(2)(b) person prior to leaving the location. Captain Lee stated that he was informed later that day that a quantity of crack cocaine had been located on § 87(2)(b) person but he was not given any more information at that time. Captain Lee learned that a strip search of § 87(2)(b) had been conducted approximately two weeks prior to his interview at the CCRB. Captain Lee did not recall who told him about the strip search and did not know where the strip search was conducted or who conducted it. Captain Lee identified Sergeant Parente as the highest ranking officer at the location of the search warrant execution after himself. Captain Lee assumed upon learning about the strip search that the crack cocaine had been found as a result of the strip search but could not say with certainty where or when the crack cocaine was identified.

Sergeant Parente stated that Detective Rivera had a search warrant for the apartment where § 87(2)(b) was residing and that Detective Rivera located § 87(2)(b) inside of the apartment. Sergeant Parente entered the apartment after his officers cleared the rooms and after Detective Rivera had placed § 87(2)(b) in handcuffs. Detective Rivera located crack cocaine on § 87(2)(b) person but Sergeant Parente did not personally see Detective Rivera locate the crack cocaine and did not know where on § 87(2)(b) person the crack cocaine was located. Sergeant Parente did not order a strip search of § 87(2)(b) and did not undress § 87(2)(b) in any way. Sergeant Parente never observed § 87(2)(b) in a state of undress and denied seeing any officer at the location undress § 87(2)(b).

As per Detective Rivera, he located § 87(2)(b) in a bedroom inside of the apartment. Detective Rivera placed § 87(2)(b) in handcuffs and stood him up, at which point he observed a bulge on § 87(2)(b) person. The bulge was approximately the size of a golf ball and was observed on § 87(2)(b) waistline. Detective Rivera undid § 87(2)(b) belt, unbuttoned his pants and removed a bag containing a “white, rocky substance” that Detective Rivera identified as crack cocaine. Detective Rivera retightened § 87(2)(b) belt and escorted him to the living room where he obtained his pedigree information. § 87(2)(b) pants remained around his waist throughout the incident and he was never in a state of undress. § 87(2)(b) was not searched again and he was never instructed to jump up and down.

Detective Ellerbee learned that crack cocaine had been recovered from inside of § 87(2)(b) bedroom but did not know whether the narcotics were on § 87(2)(b) person when they were seized. Detective Ellerbee noted that § 87(2)(b) was fully clothed throughout the incident and he did not observe any officer frisking or searching § 87(2)(b).

At the time of the entry, Detective Rivera was in possession of warrant number § 87(2)(b) which was issued in Kings County by the Honorable Judge § 87(2)(b) on § 87(2)(b). The warrant empowered officers to search § 87(2)(b) in Brooklyn and seize any narcotics located within. Officers were further commanded to locate § 87(2)(b) and search his

person. The warrant empowered officers to “search for [crack cocaine, paraphernalia, documents relating to the illegal trafficking of crack cocaine] on the person of” an individual “identified as § 87(2)(b) and deliver the seized property “without unnecessary delay” to a judge (Board Review 07).

Section 690.50 of the New York State Criminal Procedure Law governs the lawful execution of search warrants. It states that a police officer may enter and search a location for which they have a valid search warrant (Board Review 08). Patrol Guide Procedure 208-05 states that a strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person in such a manner that they may not be discovered by previous search methods. Strip searches must be conducted in privacy (Board Review 09).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED], it is recommended that **Allegations A and C be exonerated.**

Allegation B – Discourtesy: Detective James Rivera spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Detective Rivera entered his bedroom in the course of executing a search warrant and said, “Get the fuck up.” § 87(2)(b) denied hearing profanity and further stated that she was screaming during the incident and could not hear what the officers were saying as they entered the apartment. Detectives Rivera and Ellerbee, Sergeant Parente, and Captain Lee all denied hearing or using profanity during the execution of the search warrant. It is therefore recommended that **Allegation B be unsubstantiated.**

§ 87(4-b), § 87(2)(g)

[REDACTED]

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date